

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
'09 - CV - 00908

FILED
UNITED STATES DISTRICT COURT
DENVER, COLORADO

Civil Action No. _____
(To be supplied by the court)

APR 21 2009

GREGORY C. LANGHAM
CLERK

GLORIA HUIZAR SANTOYO,
Plaintiff,

v.

LEPRINO FOODS,
Defendant.

TITLE VII COMPLAINT

PARTIES

1. Plaintiff GLORIA HUIZAR SANTOYO is a citizen of DENVER, CO.
who presently resides at the following address:
3922 W. 24 AVE.
2. Defendant LEPRINO FOODS lives at or is located at the following
address:
1830 W. 38th AVE. DENVER, CO. 80211

Attach a separate page, if necessary, to list additional parties.

JURISDICTION

3. Jurisdiction is asserted pursuant to Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-5.
4. Defendant is an employer within the meaning of Title VII.
5. The alleged unlawful employment practices took place at the following location:
1830 W. 38th AVE. DENVER, CO. 80211
6. Jurisdiction also is asserted pursuant to the following statutory authority:

RECEIVED
UNITED STATES DISTRICT COURT
DENVER, COLORADO

APR 10 2009

GREGORY C. LANGHAM
CLERK

ADMINISTRATIVE PROCEDURES

7. Plaintiff filed a charge of discrimination with the Equal Employment Opportunity Commission or other appropriate administrative agency on 1/07 (date) regarding the alleged discriminatory conduct by Defendant(s).
8. Plaintiff received from the Equal Employment Opportunity Commission or other appropriate administrative agency a Notice of Right to Sue the Defendant(s) on _____ (date). (Please attach to the complaint a copy of the Notice of Right to Sue.)

NATURE OF THE CASE

9. Defendant has discriminated against Plaintiff because of the following: (please check all that apply)

☒ Race _____ Color _____ Religion _____

☒ Sex _____ National Origin _____

☒ Other (please specify) Edad / Age - Disability

10. Defendant has discriminated against Plaintiff because of the following: (please check all that apply)

_____ Failure to hire

_____ Failure to promote

☒ Demotion/discharge from employment

☒ Other (please specify) Failure to transfer following injury
Failure to provide assistance after injury

**FIRST CLAIM FOR RELIEF
AND SUPPORTING FACTUAL ALLEGATIONS**

(Please number your paragraphs and attach any necessary additional pages.
Alternatively, you may attach to the complaint a copy of the charge of discrimination
you submitted to the Equal Employment Opportunity Commission.)

**SECOND CLAIM FOR RELIEF
AND SUPPORTING FACTUAL ALLEGATIONS**

(Please number your paragraphs and attach any necessary additional pages.)

**THIRD CLAIM FOR RELIEF
AND SUPPORTING FACTUAL ALLEGATIONS**

(Please number your paragraphs and attach any necessary additional pages.)

REQUEST FOR RELIEF

Plaintiff requests the following relief:

- * I want LePrimo foods to dismiss Ruben Estrada Irigoyen so that the sexual harrassment that I experienced does not happen to other women at Leprimo Foods .
- * I also want a ^{economic} compensation for the emotional damage that my interactions with Ruben Estrada Irigoyen caused .
- * I want to assure that I am safe from harm. I would like a protection/restraining order for myself and my daughters

Date: 4/10/09

Gloria Huizar Santoyo
(Plaintiff's Original Signature)

(Street Address)

3922 W 24 AVE DENVER CO 80212
(City, State, ZIP)

720-855-8352
(Telephone Number)

EEOC Form 5 (5/01)

CHARGE OF DISCRIMINATION This form is affected by the Privacy Act of 1974. See enclosed Privacy Act Statement and other information before completing this form.		Charge Presented To: Agency(ies) Charge No(s): ☐ FEPA ☒ EEOC 541-2007-00860	
Colorado Civil Rights Division and EEOC State or local Agency, if any			
Name (Indicate Mr., Ms., Mrs.) Ms. Gloria Huizar		Home Phone No. (Incl Area Code) (720) 327-6317	Date of Birth 10-13-1964
Street Address City, State and ZIP Code P.O. Box 11972, Denver, CO 80211			
Named is the Employer, Labor Organization, Employment Agency, Apprenticeship Committee, or State or Local Government Agency That I Believe Discriminated Against Me or Others. (If more than two, list under PARTICULARS below.)			
Name LEPRINO FOODS		No. Employees, Members 500 or More	Phone No. (Include Area Code) (303) 480-2600
Street Address City, State and ZIP Code 1830 West 38th Ave, Denver, CO 80211			
Name		No. Employees, Members	Phone No. (Include Area Code)
Street Address City, State and ZIP Code			
DISCRIMINATION BASED ON (Check appropriate box(es)) ☐ RACE ☐ COLOR ☒ SEX ☐ RELIGION ☐ NATIONAL ORIGIN ☐ RETALIATION ☐ AGE ☒ DISABILITY ☐ OTHER (Specify below.)		DATE(S) DISCRIMINATION TOOK PLACE Earliest Latest 7-1-06 12-18-06 ☐ CONTINUING ACTION	
THE PARTICULARS ARE (If additional paper is needed, attach extra sheet(s)): On 12-18-06, I was discharge. On 12-14-06, I was suspended without pay. On/around 7-6-06, I was sexually harassed. I was denied reasonable accommodation from 7-06, to 12-18-06. I believe I have been discriminated against based on my sex (female), in violation of Title VII of the Civil Rights Act of 1964, as amended and my disability (regarded as), in violation of the Americans with Disabilities Act of 1990, as amended, inasmuch as: a. On 7-1-06, I had an on-the-job injury. On/around 7-6-06, I was sexually harassed by my supervisor when he unbuttoned my pants and put his hand down the front of my pants while I was entering the womans bathroom in my wheelchair. After I was out of my wheelchair my supervisor would make sexual remarks while I was bending over doing my job. Specifically, that I should stay bent over so he could enter me from behind. My supervisor always threatened me with discharge if I ever said anything. My supervisor has left inappropriate, sexual and threatening telephone messages at home on/around 1-8-07, 1-20-07, 2-1-07 & 2-10-07. I am aware of other females filing sexual harassment complaints against my supervisor, however, he continues to be employed. I informed a co-worker of the sexual harassment. b. On/around 7-6-06, I left a written message for the Human Resource (HR) manager to contact me as soon as possible. I left a second written message on 7-13-06 with HR. On 7-18-06, I left a third written message with two HR officials. I never received a response. I worked from 5:30 p.m. to 1 a.m. therefore, left written notes because I never saw HR. The messages were left on their desks.			
I want this charge filed with both the EEOC and the State or local Agency, if any. I will advise the agencies if I change my address or phone number and I will cooperate fully with them in the processing of my charge in accordance with their procedures.		NOTARY - When necessary for State and Local Agency Requirements I swear or affirm that I have read the above charge and that it is true to the best of my knowledge, information and belief. SIGNATURE OF COMPLAINANT SUBSCRIBED AND SWORN TO BEFORE ME THIS DATE (month, day, year)	
I declare under penalty of perjury that the above is true and correct.		Feb 28, 2007 Date  Charging Party Signature	

Form 5 (5/01)

CHARGE OF DISCRIMINATION

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Charge Presented To:

Agency(ies) Charge No(s):

☐ FEPA

☒ EEOC

541-2007-00860

Colorado Civil Rights Division

State or local Agency, if any

and EEOC

THE PARTICULARS ARE (Continued from previous page):

c. On 12-14-06, I was suspended for entering the males restroom to get supplies, although I had followed procedure in that I was with a co-worker and we knocked on the door before entering. On 12-18-06, I was discharged for the same reason.

d. I believe I was fired due to my disability and sex because my supervisor constantly made negative remarks about my on-the-job injury and because of the sexual harassment. I was able to perform the essential functions of my job with accommodation for certain duties.

I want this charge filed with both the EEOC and the State or local Agency, if any. I will advise the agencies if I change my address or phone number and I will cooperate fully with them in the processing of my charge in accordance with their procedures.

I declare under penalty of perjury that the above is true and correct.

Feb 28, 2007

Date

Gloria Huizar Santoya
Charging Party Signature

NOTARY - When necessary for State and Local Agency Requirements

I swear or affirm that I have read the above charge and that it is true to the best of my knowledge, information and belief.

SIGNATURE OF COMPLAINANT

SUBSCRIBED AND SWORN TO BEFORE ME THIS DATE
(month, day, year)

EEOC Form 161 (1/08)

U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

DISMISSAL AND NOTICE OF RIGHTS

To: Gloria Huizar
3922 West 24th Avenue
Denver, CO 80212

From: Denver Field Office
303 East 17th Avenue
Suite 410
Denver, CO 80203

☐ On behalf of person(s) aggrieved whose identity is
CONFIDENTIAL (29 CFR § 1601.7(a))

EEOC Charge No.

EEOC Representative

Telephone No.

541-2007-00860

Holly Romero,
Supervisory Investigator

(303) 866-1341

THE EEOC IS CLOSING ITS FILE ON THIS CHARGE FOR THE FOLLOWING REASON:

- ☐ The facts alleged in the charge fail to state a claim under any of the statutes enforced by the EEOC.
- ☐ Your allegations did not involve a disability as defined by the Americans with Disabilities Act.
- ☐ The Respondent employs less than the required number of employees or is not otherwise covered by the statutes.
- ☐ Your charge was not timely filed with EEOC; in other words, you waited too long after the date(s) of the alleged discrimination to file your charge.
- ☒ The EEOC issues the following determination: Based upon its investigation, the EEOC is unable to conclude that the information obtained establishes violations of the statutes. This does not certify that the respondent is in compliance with the statutes. No finding is made as to any other issues that might be construed as having been raised by this charge.
- ☐ The EEOC has adopted the findings of the state or local fair employment practices agency that investigated this charge.
- ☐ Other (briefly state)

- NOTICE OF SUIT RIGHTS -

(See the additional information attached to this form.)

Title VII, the Americans with Disabilities Act, and/or the Age Discrimination in Employment Act: This will be the only notice of dismissal and of your right to sue that we will send you. You may file a lawsuit against the respondent(s) under federal law based on this charge in federal or state court. Your lawsuit **must be filed WITHIN 90 DAYS of your receipt of this notice**; or your right to sue based on this charge will be lost. (The time limit for filing suit based on a claim under state law may be different.)

Equal Pay Act (EPA): EPA suits must be filed in federal or state court within 2 years (3 years for willful violations) of the alleged EPA underpayment. This means that **backpay due for any violations that occurred more than 2 years (3 years) before you file suit may not be collectible.**

On behalf of the Commission

Holly Romero for

January 13, 2009

Enclosure(s)

Nancy A. Sienko,
Field Office Director

(Date Mailed)

cc: Leprino Foods Company